

25STCV37863 25STCV37863

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C834%2C07%2F16%2F2026

Source SHA-256: a266c81fa0aa9ed88f5af05d99963900637443ba8244f17e85a97d29741d3a44

Case Number: 25STCV37863 Hearing Date: July 16, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

¿

F4 SANTA FE SPRINGS LENDER, LLC,

Plaintiff(s),

vs.

BR SFS,

LLC,

Defendant(s).

Case No.:

25STCV37863

Hearing Date:

July 16, 2026

[TENTATIVE]

ORDER RE: OSC RE: TURNOVER

Receiver Michael Fiorina ("Receiver") requests an order compelling defendant BR SFS, LLC ("Borrower") to turn over all revenue generated by Borrower's property located at 10025 Bloomfield Avenue, Santa Fe Springs, CA 90670 ("Property") from oil leases in April and May, 2026 ("Revenues"). Plaintiff F4 Santa Fe Springs Lender, LLC ("Lender") joins.

The request is granted.

I.

Background

On December 26, 2025, Lender filed its complaint against Borrower for judicial foreclosure and specific performance of deed of trusts including assignment of rents, appointment of receiver, and injunctive relief.

On January 21, 2026, the Court heard Lender's ex parte application for appointment of receiver, temporary restraining order ("TRO"), and order to show cause ("OSC") re: confirmation of appointment of receiver and for preliminary injunction. After briefing and oral argument, the Court continued the hearing to January 23, 2026 to allow the parties to address certain evidentiary issues.

On January 23, 2026, the court heard and granted Lender's continued ex parte application. The Court set an OSC re: confirmation of appointment of receiver for February 17, 2026. The Court issued the TRO and Order Appointing Receiver appointing Michael Fiorina as rents and profits receiver the same day. On January 26, 2026, Receiver filed his oath of receiver and undertaking. On February 17, 2026, the Court heard the OSC re: confirmation of appointment of receiver and confirmed Michael Fiorina as Receiver.

On March 3, 2026, Borrower filed its answer to the complaint.

On July 1, 2026, the Court heard Receiver's ex parte application for an order compelling turnover of all funds derived from the Property in compliance with the Order Appointing Receiver, authorizing Receiver to hire a forensic accountant, authorizing Receiver to hire counsel, and issuing an OSC re: contempt. The Court granted the application in part, granting Receiver authority to engage SandDollar Financial, LLC ("SandDollar") as a

forensic accountant and granting the Receiver authority to engage Buchalter LLP as counsel. The Court denied Receiver's request for an OSC re: contempt. The Court denied Receiver's request for an immediate turnover order as to the Revenues without prejudice and set an OSC re: turnover for July 16, 2026.

II.

Discussion

Receiver seeks an order compelling Borrower to turn over the Revenues in compliance with the Order Appointing Receiver, whereby Borrower was ordered to cooperate with Receiver and turn over all income received from the Property to the Receiver, including all revenue generated by the oil leases attached to the Order Appointing Receiver.

Every court shall have the power to compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein. (CCP § 128(a)(4).) This enforcement power is also an inherent power of the court. (See *Security Trust & Sav. Bank v. Southern Pac. R. Co.* (1935) 6 Cal.App.2d 585, 588 ["It is a well-established principle of law that a court possesses power to enforce its judgments."]; *Machado v. Myers* (2019) 39 Cal.App.5th 779, 796 n.13, 252 ["Trial courts have the inherent authority to enforce their rulings."].)

In opposing the ex parte application which preceded the instant OSC, Borrower argued that, due to an accounting error, it had prepaid all revenue for the relevant period. It further argued that the matter was inappropriate for ex parte hearing because the accounting involved is too complicated.

As noted above, the Court denied the ex parte application and set the instant OSC. At the ex parte hearing, the court ordered Borrower:

Borrower's Opposition must be filed and served no later than July 12, 2026[[1]].

Borrower's opposition should specifically address why no revenues were turned over for April or May 2026, as well as how Borrower's position for not doing so is supportable under the Order Appointing Receiver entered by this Court on February 17, 2026.

In opposition to the instant OSC, Borrower makes only one argument. Borrower contends that because the Receiver did not retain SandDollar as its forensic accountant until July 6, 2026, SandDollar has not yet issued a report. Consequently, Borrower argues, there is nothing new for the Court to examine, and so Borrower requests the Court to “consider that the state of the evidence is not sufficient to determine the totality of facts and to set further hearings as necessary.” (Opp. at 3.)

The Court needs no further evidence.

In its Order Appointing Receiver, the Court charged Receiver with taking possession of and managing the Property, collecting the income from the Property, and caring for the Property, including incurring expenses necessary for that care. (Order Appointing Receiver, ¶ 9.) The Court ordered Borrower to immediately turn over possession of the Property to the Receiver, including all rental or lease payments. (Order Appointing Receiver, ¶ 31(a).) The Court restrained Borrower from demanding, collecting, or in any other way diverting or using any of the rents from the Property, and from interfering in any manner with the discharge of Receiver’s duties. (Order Appointing Receiver, ¶ 31(d)(2)-(3).)

Despite the Court’s explicit direction, Borrower’s opposition does not address why no revenues were turned over for April or May 2026, nor how Borrower’s position for failing to turn over those Revenues was supportable under the Order Appointing Receiver. (See generally Opp.)

The Court finds Borrower is in violation of the Order Appointing Receiver.

III.

Conclusion

Borrower is in violation of the Order Appointing Receiver. The turnover request is therefore GRANTED. Borrower is ordered to turn over all gross proceeds from the Property for April and May 2026.

Date: July 16, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

.

Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

.

If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

.

Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

.

If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The Court inadvertently ordered Borrower's opposition due on a Sunday. It was filed instead on Wednesday, July 15, 2026.